THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
Court No-II
(through hybrid mode)

Item 1

CP (CAA) No. 42/Chd/Hry/2023
(2nd Motion)

Under Section 230-232, CA 2013

In the matter of:

Chamundeshwari Builders Pvt. Ltd. ...Petitioner Company

And

DLF Garden City Indore Pvt Ltd. ...Transferee Company

Present: Dr. U.K. Chaudhary, Senior Advocate, Mr. Pulkit Goyal with Ms. Manisha Sharma and Ms. Manisha Sharma, Ms. Ramneek Kaur Maan for the Petitioner Company.

Heard the submissions made by the counsel for the petitioners. We have perused the paper book. This is a Second Motion Scheme of Amalgamation proposal, wherein six transferor companies involving merger/amalgamation of Chamundeshwari Builders Pvt. Ltd. (Transferor Company No. 1), DLF Garden City Indore Pvt. Ltd. (Transferor Company No. 2), DLF IT Offices Chennai Pvt. Ltd. (Transferor Company No. 3), DLF Residential Developers Ltd. (Transferor Company No. 4), Latona Builders & Constructions Pvt. Ltd. (Transferor Company No. 5) and Livana Builders & Developers Pvt. Ltd. (Transferor Company No. 6) with transferee company DLF Home Developers Limited are involved. This is an amalgamation between holding company and its

subsidiaries and they are under the common management and common control. Order in this matter is reserved.

Sd/-
(Umesh Kumar Shukla)
Member (Technical)

Sd/-
(Dr. P.S.N Prasad)
Member (Judicial)

November 10, 2023
Mukta